



The Purse You Promised to Guard

Student copy (project or hand out)

1 Director Vought, you came into office on a stated reverence for the written Constitution, and it is in that spirit, not against it, that this letter is offered. You have called your project radical constitutionalism. You have said your aim is to restore the document to its original meaning and to hold the federal government to the limits the founders set down. A reader who took you at your word would expect you, above all other officers, to honor the text where it speaks plainly. It speaks plainly about money.

2 The relevant words are not obscure, and you know them better than most. Article I, Section 9 provides that no money shall be drawn from the Treasury but in consequence of appropriations made by law; the power of the purse, by the founders' design, belongs to Congress and not to you. On February 3 of this year Congress did exactly what that clause contemplates, approving seventy-nine billion dollars in discretionary funding for the Department of Education through the end of September. The law was made. The condition the Constitution sets was met.

3 What has happened since is the difficulty I am writing to lay before you. As of the first of this month your office had apportioned little or none of the fiscal 2026 money for thirty-two of the department's competitive grant programs, more than one point eight billion dollars held back from purposes Congress had already chosen; of the seven hundred ninety million budgeted for education research your office released only two hundred five million, and of the one hundred thirty-nine million for the magnet schools program, only thirty-five. You have described these as programmatic delays rather than impoundments. The Impoundment Control Act, passed in 1974 and still good law, draws the line elsewhere: a president who wishes to cancel appropriated funds must ask, and if the House and Senate do not approve the rescission within forty-five days of continuous session, the funds must be made available.

4 I do not ask you to abandon a single one of your constitutional convictions; I ask only that you apply them evenly. You have argued, candidly, that the Impoundment Control Act is itself unconstitutional, and you are entitled to believe it. But at your confirmation you also conceded, under questioning, that no court of law has ever found that statute unconstitutional, and a man who reveres the written Constitution does not get to suspend a duly enacted law on his own private reading of it while the courts are still sitting. That, if any phrase does, is the rule of one man over the rule of law.

5 There is a clock on this, and it is not of my making. Nearly one point four billion of the withheld dollars will expire in less than five months and return to the Treasury, spent on nothing, helping no child, vindicating no principle; a magnet program in some ordinary district will simply not run, and the families there will never know what the apportionment table decided for them. The Government Accountability Office has by now opened forty-six impoundment investigations into this administration. Twenty-four

states have gone to court. A federal judge in Washington has already ordered one set of cancelled education grants restored as unlawful.

6 So I will close not with a demand, which is not mine to make, but with the request your own philosophy invites. Release the funds Congress appropriated, or send Congress the formal rescission the 1974 law requires and let the House and Senate vote as the statute says they must. Either path honors the Constitution you have promised to restore. The choice of which to take is, properly, yours.

AP-style multiple choice:

1. Which of the following best describes the writer's exigence in the opener?
 - A) The Department of Education has mismanaged seventy-nine billion dollars and the writer is calling for an independent audit of its grant programs
 - B) The writer disagrees with the addressee's judicial philosophy and wishes to debate the theory of radical constitutionalism in the abstract
 - C) The Impoundment Control Act has finally been declared unconstitutional and the writer is urging Congress to replace it
 - D) A duly enacted appropriation is going unspent because the OMB director is withholding funds rather than following the rescission process the law lays out
2. In the final paragraph, the writer frames the closing request primarily to
 - A) concede that the writer lacks the standing to influence the addressee's decision at all
 - B) bind the addressee by offering only choices that his own professed principles would have to accept
 - C) soften the letter's argument by retreating from the criticisms made earlier in the piece
 - D) warn the addressee that legal penalties will follow if neither course of action is taken

Discussion questions:

1. The letter never tells Vought he is wrong; instead it holds him to principles he has already stated out loud. Find one place where the writer quotes or paraphrases the addressee's own words or beliefs, and explain how using his commitments against him is more persuasive here than a direct accusation would be.
2. In the fourth paragraph the writer grants that Vought sincerely believes the Impoundment Control Act is unconstitutional and is entitled to that belief. Why might a writer concede so much ground to the person being criticized, and what does the concession let the next sentence accomplish?

Writing prompt (Homework or extended in-class, Q3 argument):

The writer argues that an official who claims to revere the written Constitution "does not get to suspend a duly enacted law on his own private reading of it while the courts are still sitting." Defend, challenge, or qualify the claim that an executive official is bound to follow a law he sincerely believes unconstitutional until a court rules otherwise. Use your own knowledge, observation, or reading to support your position.